

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 915

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 16, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-1639, IDAHO CODE, TO REQUIRE PUBLIC SCHOOLS TO PROVIDE DAILY RECESS FOR STUDENTS IN KINDERGARTEN THROUGH GRADE FIVE AND TO ENCOURAGE SCHOOLS TO PROVIDE UNSTRUCTURED ACTIVITY BREAKS FOR STUDENTS IN GRADES SIX THROUGH EIGHT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 16, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-1639, Idaho Code, and to read as follows:

33-1639. DAILY RECESS AND UNSTRUCTURED ACTIVITY. (1) Each school district, specially chartered district, and public charter school shall provide to students in kindergarten through grade 5 a period of daily recess outdoors, guaranteeing every student time to move, play, and grow. At least one (1) recess period shall occur daily and outdoors and shall be for not less than twenty (20) minutes, weather and scheduling permitting. If weather does not permit students to be outdoors, then daily recess shall be accommodated indoors, such as in a gymnasium. Daily recess provided pursuant to this section shall not be withheld from an entire class for disciplinary purposes.

(2) Each school district, specially chartered district, and public charter school is encouraged to provide to students in grades 6 through 8 daily unstructured activity breaks.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.